

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
JOSE M. CRUZ,

SUMMONS

Plaintiff,

Plaintiff designates Bronx
County as the place of trial.

-against-

The basis of venue is:
Location of Incident

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. SHAWN MOYNIHAN, "P.O. JOHN
DOE #1", AND "P.O. JOHN DOE #2",

Defendants.

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: BROOKLYN, NEW YORK
December 23, 2015

WILLIAM PAGER
Law Offices of William Pager
Attorneys for Plaintiff
JOSE M. CRUZ
203-205 Kings Highway
Brooklyn, New York 11223
718-998-1010
Our File No. 3076

TO: THE CITY OF NEW YORK
100 Church Street
New York, NY 10007-2341

New York City Police Department
1 Police Plaza
New York, NY

P.O. SHAWN MOYNIHAN
1 Police Plaza
New York, NY

“P.O. JOHN DOE #1”
1 Police Plaza
New York, NY

“P.O. JOHN DOE #2”
1 Police Plaza
New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JOSE M. CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. SHAWN MOYNIHAN, "P.O. JOHN
DOE #1", AND "P.O. JOHN DOE #2",

Defendants.
-----X

Index No.:
Date Purchased:

VERIFIED COMPLAINT

Plaintiff, by his attorneys, **LAW OFFICES OF WILLIAM PAGER**, as and for their
Verified Complaint, states follows:

1. At all times hereinafter mentioned, **JOSE M. CRUZ** was, and still is, a resident of the County of Bronx and State of New York.
2. That cause of action alleged herein arose in the County of the Bronx, and the State of New York.
3. That this action falls within one or more of the exceptions set forth in CPLR §1602.
4. At all times hereinafter mentioned, Defendant the **CITY OF NEW YORK** is a statutory municipal entity existing pursuant to the laws of the State of New York.
5. At all times hereinafter mentioned, Defendant the **CITY OF NEW YORK** maintains a department of police and a police force.

6. At all times hereinafter mentioned, Defendant the **NEW YORK CITY POLICE DEPARTMENT** is a department of the **CITY OF NEW YORK** and a statutory entity existing pursuant to the laws of the State of New York.

7. That on January 15, 2015, and at all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation.

8. That on January 15, 2015, and at all times herein mentioned, Defendant **THE CITY OF NEW YORK POLICE DEPARTMENT** was and still is a municipal agency and a department of the City of New York.

9. At all times hereinafter mentioned, Defendant **SHAWN MOYNIHAN** was employed as a police officer in the **CITY OF NEW YORK POLICE DEPARTMENT**, and was acting within the scope of his employment.

10. At all times hereinafter mentioned, Defendant **"P.O. JOHN DOE #1"** was employed as a police officer in the **CITY OF NEW YORK POLICE DEPARTMENT**, and was acting within the scope of his employment.

11. At all times hereinafter mentioned, Defendant **"P.O. JOHN DOE #2"** was employed as a police officer in the **CITY OF NEW YORK POLICE DEPARTMENT**, and was acting within the scope of his employment.

12. That on January 15, 2015, at approximately 6:00 p.m. at 1428 Webster Avenue, in the public hallway front of apt. 12D in the Bronx, New York, Plaintiff was unlawfully and improperly stopped, detained, beaten, injured and arrested by the Defendants herein.

13. At the aforesaid time and place, Plaintiff was wrongfully stopped and detained by the Defendants, including and in particular, the members of the police department herein, Defendants **SHAWN MOYNIHAN**, **"P.O. JOHN DOE #1"** and **"P.O. JOHN DOE #2"**.

14. At the aforesaid time and place, Plaintiff was assaulted by the Defendants believed to be the members of the police department, including Defendants **SHAWN MOYNIHAN, "P.O. JOHN DOE #1"** and **"P.O. JOHN DOE #2"**.

15. That on January 15, 2015, at approximately 6:00 p.m., Plaintiff was falsely arrested by the Defendants herein.

16. On the aforesaid time, Plaintiff was assaulted and battered by the Defendants herein.

17. At the aforesaid time and place, Plaintiff was falsely imprisoned without due cause.

18. At the aforesaid time and place, Defendants, used excessive force in stopping, detaining, assaulting and arresting the Plaintiff herein.

19. At the aforesaid time and place, Defendants violated Plaintiff's constitutional rights in depriving him of his freedom and causing injury to his person without just cause.

20. At no time herein, did Plaintiff engage in any action, which would justify the arrest, assault and prosecution of the Plaintiff herein.

21. That the above mentioned occurrence, and the results thereof, were caused solely and exclusively by and through the failure of the defendants, their agents, servants, representatives, employees to properly supervise, instruct and train their agents, servants, representatives, employees, including but not limited to Defendants, **SHAWN MOYNIHAN, "P.O. JOHN DOE #1"** and **"P.O. JOHN DOE #2"**, in the investigation, detaining, restraining and evicting of individuals; in negligent and improper detention, stop, accosting, assault, battery, etc. of the plaintiff, in promulgating, having, instituting, and maintaining negligent and improper hiring and retaining practices; in failing to investigate employees and potential employees; in

failing to conduct adequate screening and background searches; in severely and viciously injuring the claimant; in using epithets and degrading language to and about plaintiff in plaintiff's presence; in failing to timely and adequately render medical assistance to plaintiff; in violating plaintiff's civil rights; in and otherwise being careless, reckless and negligent in, at, about, and upon the subject premises.

22. That no negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

23. That by reason of the foregoing, plaintiff was caused to sustain serious injuries; to have suffered pain, shock and great mental anguish; that these injuries and their effects will be permanent; and that as the direct result of said injuries, plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention.

24. That by reason of the foregoing, plaintiff was damaged in an amount that exceeds the jurisdiction of all other Courts that would otherwise have and maintain jurisdiction over this matter.

25. Notice of Claim was served against all municipal entities and Plaintiff has complied with all conditions precedent to bringing these actions.

26. That a hearing under G.M.L. 50-H has not been held, to date.

27. That the defendants failed and/or refused to schedule and/or reschedule a hearing pursuant to GML 50-H.

28. That thereafter the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

29. That this action is being commenced within one year and ninety days after accrual of this action, or within the time allowed by law.

30. The claim made by the Plaintiff comes under one or more of the exceptions to joint and separate liability pursuant to CPLR §1600.

AS AND FOR A FIRST CAUSE OF ACTION

31. Plaintiff repeats and reiterates the allegations contained in paragraphs “1” through “24” herein.

32. That the Defendants, their agents, servants, and employees actively patrolled, occupied, controlled, inspected, supervised, and/or derived special use of the property described above.

33. That the Defendants, their agents, servants, and employees had and assumed a duty to keep the above described property and premises reasonably safe for visitors and the members of the general public.

34. That the Defendants, their agents, servants and employees undertook the responsibility of providing security for the general public and/or visitors to the premises.

35. That the Defendants, their agents, servants, and employees had a duty to reasonably control the improper actions of those on the premises, including the members of the security.

36. That the Defendants, their agents, servants, and employees had a duty to reasonably protect members of the general public and/or visitors to the premises from the misconduct and improper actions of those on the premises, including the members of the security.

37. That on the day of the incident, the defendants breached its duty of care, negligently, carelessly and or recklessly permitting the above described incident to take place.

38. Upon information and belief, the defendants knew or should have known that the improper and unlawful behavior of agents, servants and or employees involved in the incident herein was foreseeable.

39. Upon information and belief, the defendants acted and/or failed to act in a way to keep the premises reasonably safe for those lawfully on its property.

40. Upon information and belief, the defenants breached their duty of care, negligently, carelessly and or recklessly ordering, directing, permitting, causing or allowing the above described conduct which led to the injuries and damages sustained herein.

41. That the actions of the defendants included but not limited to assault, battery, intentional and negligent infliction of emotional distress, etc., as well as the emotional and physical damages sustained by the plaintiff were caused by the negligence, carelessness and/or recklessness of the defendants herein.

42. As a result of the action of the Defendants herein, Plaintiff was falsely arrested and detained by the Defendants without probable cause.

43. As a result of the aforesaid, Plaintiff seeks damages in the amount of \$1,000,000.00

AS AND FOR A SECOND CAUSE OF ACTION

ASSAULT

44. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "24" herein.

45. That the Defendants, their agents, servants, and employees acted, intending to cause harmful conduct to the Plaintiff.

46. That Plaintiff reasonably was touched and assaulted in a harmful manner.

47. The Plaintiff did not consent to the Defendants assaultive conduct.

48. That Plaintiff was harmed by the Defendants assaultive conduct.

49. That Defendants assaultive conduct was a substantial factor in causing the Plaintiff's harm.

50. As a result of the aforesaid, Plaintiff was caused to be assaulted by the Defendants without due cause.

51. As a result of the aforesaid, the Plaintiff was damaged and seeks a recovery for assault and use of excessive force in the amount of \$1,000,000.00.

AS AND FOR A THIRD CAUSE OF ACTION

BATTERY

52. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "24" herein.

53. The Defendants intended to cause harmful and offensive conduct with the Plaintiff's person.

54. The conduct was such to offend a reasonable sense of personal dignity and well being.

55. The Plaintiff did not consent to the touching and that the Plaintiff sustained harm, both physical and emotional by Defendants conduct.

56. As a result of the aforesaid, Plaintiff was caused to be battered by the Defendants.

57. As a result of the aforesaid, Plaintiff has been damaged and seeks damages for malicious prosecution in the amount of \$1,000,000.00.

AS AND FOR A FOURTH CAUSE OF ACTION

58. Plaintiff repeats and reiterates the allegations contained in paragraphs “1” through “24” herein.

59. As a result of the action of the Defendants herein, Plaintiff was falsely and wrongly imprisoned and detained by the Defendants without probable cause.

60. As a result of the aforesaid, Plaintiff seeks damages for false imprisonment in the amount of \$1,000,000.00.

AS AND FOR A FIFTH CAUSE OF ACTION

61. Plaintiff repeats and reiterates the allegations contained in paragraphs “1” through “24” herein.

62. Plaintiff was injured as a result of the excessive force used by the Defendants herein.

63. Defendants were negligent, careless, reckless and grossly negligent in the manner in which they came in contact with the Plaintiff, causing Plaintiff unjustifiable harm.

64. As a result of the aforesaid, Plaintiff seeks damages for negligence, carelessness, recklessness and gross negligence in the amount of \$1,000,000.00.

AS AND FOR A SIXTH CAUSE OF ACTION

65. Plaintiff repeats and reiterates the allegations contained in paragraphs “1” through “24” herein.

66. As a result of the aforesaid, the Defendants maliciously prosecuted Plaintiff for the various offenses without probable cause and without basis for going forward with these charges.

67. As a result of the aforesaid, Plaintiff has been damaged and seeks damages for malicious prosecution in the amount of \$1,000,000.00

AS AND FOR A SEVENTH CAUSE OF ACTION

68. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "24" herein.

69. As a result of the aforesaid, Plaintiff's constitutional rights both state and federal were violated, including but not limited to, Article 14 of the Constitution and Section 1983 of the U.S. Code.

70. As a result of the aforesaid, Plaintiff seeks damages and legal fees as mandated by the state and federal statutes, As a result of the aforesaid, Plaintiff seeks damages in the amount of \$1,000,000.00.

AS AND FOR AN EIGHTH CAUSE OF ACTION

ON BEHALF OF PLAINTIFF

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

71. The Plaintiff re-alleges and incorporates all the facts and allegations expressed above as if alleged and incorporated herein.

72. The conduct of the defendants in the above described behavior and actions was outrageous in that it exceeded all bounds of decency, and that which a reasonable person would regard as intolerable in a civilized community and under the prevailing circumstances.

73. The conduct of the defendants that gave the defendants real or apparent power to affect the plaintiff's interests and they knew that the plaintiff was vulnerable to emotional distress and that their conduct would likely result in harm due to mental distress.

74. The defendants intended to cause the plaintiff emotional distress.

75. The defendants acted with reckless disregard of the probability that the plaintiff would suffer emotional distress, knowing that the plaintiff was present when the conduct occurred.

76. The Plaintiff suffered both physical injury and severe emotional distress that was substantial and that no reasonable person in a civilized society should be expected to bear, including but not limited to suffering, anguish, fright, horror, nervousness, grief, anxiety, worry, shock, humiliation and shame.

77. The conduct of the defendants was a substantial factor in causing the plaintiff's severe emotional distress.

AS AND FOR A NINTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

78. The Plaintiff re-alleges and incorporates all the facts and allegations expressed above as if alleged and incorporated herein.

79. The conduct of the defendants in negligently causing severe emotional distress to the plaintiff by its extremely negligent, reckless and indifferent conduct, including but not limited to breach of its duty of care, allowing and fomenting the confrontation and the attack on the plaintiff by its agents, servants and or employees which was outrageous in that it exceeded all bounds of decency, and that which a reasonable person would regard as intolerable in a civilized community and under the prevailing circumstances.

80. The conduct of the defendants that gave the defendants real or apparent power to affect the plaintiff's interests and they knew that the plaintiff was vulnerable to emotional distress and that their conduct would likely result in harm due to mental distress.

81. The defendants were negligent, reckless and indifferent in their conduct, actions and or failures to act, which caused the plaintiff emotional distress and/or physical injury.

82. The defendants acted with reckless disregard of the probability that the plaintiff would suffer emotional distress, knowing that the plaintiff was present when the conduct occurred.

83. The conduct of the Defendants were so outrageous in nature and so extreme in degree that a reasonable member of the community would regard such conduct as atrocious, beyond all plausible bounds of decency and utterly intolerable in a civilized community.

84. As a direct result of the Defendants negligent, reckless and indifferent conduct, the plaintiff suffered and is likely to continue suffering severe pain, emotional distress, mental anguish and physical injuries as the results of the above described assault, etc.

85. The Plaintiff suffered both physical injury and severe emotional distress that was substantial and that no reasonable person in a civilized society should be expected to bear, including but not limited to suffering, anguish, fright, horror, nervousness, grief, anxiety, worry, shock, humiliation and shame.

86. The conduct of the defendants was a substantial factor in causing the plaintiff's severe emotional distress.

TENTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION & SUPERVISION

87. Plaintiff repeats paragraphs set forth above as though fully set forth herein.

88. At the above-described time and place, plaintiff was unlawfully and violently assaulted by defendants and defendants Police Officers.

89. Defendants disregarded their duty to protect plaintiff, failed to prevent the Police Officer from threatening, assaulting, attacking and inflicting serious injuries upon plaintiff and took no actions to stop these unlawful acts.

90. Defendants were negligent in failing to provide adequate security so as to protect plaintiff, who was a citizen and entitled to security and protection, and carelessly failed to take all and reasonable necessary precautions to prevent this occurrence.

91. The occurrence was occasioned solely and wholly as a result of the negligence of defendants, City and Police Department, in their supervision, training, hiring and retention of the Police Officers.

92. Defendants City and Police Department knew or should have known that prior to, at and subsequent to the time when defendants employed and engaged defendant Police Officers, they were persons of incompetence and indifference; had previously caused other individuals to be falsely imprisoned without just cause or provocation and was known by general reputation to be incompetent and indifferent.

93. Defendants City and Police Department failed and neglected to make any, or appropriate, inquiries with respect to the competence and temperament and character of defendant Police Officer, prior to, at or subsequent to the time defendants City and Police Department employed him.

94. By reason of the above, defendants City and Police Department were negligent in hiring and retaining defendant Police Officer.

95. 17. As a result of the foregoing, plaintiff suffered serious, severe personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

96. As a result of the foregoing, plaintiff suffered serious, severe personal and emotional injuries, medical expenses and out-of-pocket expenses all to his damage in a sum of money which exceeds the monetary jurisdiction of all lower courts.

PUNITIVE DAMAGES

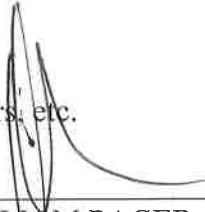
97. Because the defendants conduct was malicious and oppressive, the plaintiff is entitled to be awarded punitive damages to punish the defendants for their wrongful conduct.

98. That as a result of the foregoing, Plaintiff was damaged in the sum of FIVE MILLION (\$5,000,000.00) DOLLARS.

WHEREFORE, Plaintiff seek judgment against the Defendants on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth and Tenth Causes of Action in the amount of ONE MILLION (\$1,000,000.00) DOLLARS each together with punitive damages, costs and attorney fees and the disbursements of this action.

Dated: Brooklyn, New York
December 23, 2015

Yours, etc.



WILLIAM PAGER
Law Offices of William Pager
Attorneys for Plaintiff
JOSE M. CRUZ
203-205 Kings Highway
Brooklyn, New York 11223
718-998-1010
Our File No. 3076

ATTORNEY'S VERIFICATION BY AFFIRMATION

WILLIAM PAGER, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF WILLIAM PAGER, attorneys of record for Plaintiff, JOSE M. CRUZ. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff is because Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain their offices.

Dated: BROOKLYN, NEW YORK
December 23, 2015



William Pager

Index No.
SUPREME COURT OF THE STATE OF NEW YORK (Bronx)
COUNTY OF BRONX

JOSE M. CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. SHAWN
MOYNIHAN, "P.O. JOHN DOE #1", AND "P.O. JOHN DOE #2",

Defendants.

SUMMONS AND COMPLAINT

Law Offices of William Pager
Attorneys for Plaintiff
203-205 Kings Highway
Brooklyn, New York 11223
Phone: 718-998-1010
Fax: 718-998-8046

PLEASE TAKE NOTICE

That the within is a true copy of a _____ entered in the office of the clerk of the within
named Court on _____

That a _____ of which the within is a true copy will be presented for settlement to the Hon.
One of the Judges of the within named Court at _____ on
at 9:30 a.m.

Due and timely service of the within _____
Dated: _____

is hereby admitted

X _____

Attorneys for